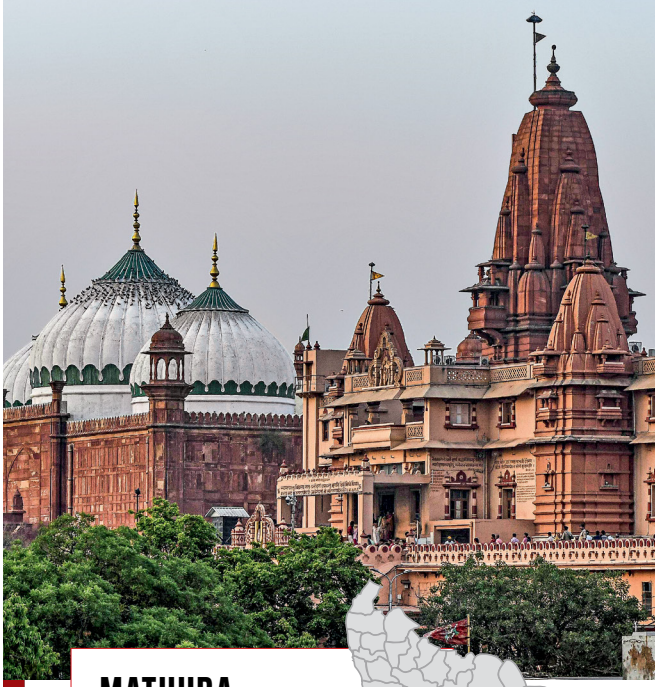
with a judicial pronouncement. It has led on to the Shahi Idgah in Mathura—also a well-recorded instance of demolition by Aurangzeb, and also evoked as part of an unfinished project in the post-Babri slogan '*Kashi Mathura Baaki Hai*'. And not just those two. The upsurge is threatening to prise open all the crevasses in history—real or imagined. From known cases of Muslim imperial vandalism to disputes of interpretation, like Baba Budangiri in Karnataka's coffee-flavoured Chikmagalur, everything is fair game. Even the celebrated Taj Mahal has seen claims being advanced of having been built over a temple. The website Article 14 lists not only a flurry of "identically-worded suits" on Gyanvapi, but "12 similar claims on mosques and Islamic-era monuments" across four states. An outfit called the Hindu Janajagruti Samiti has drawn up a list of 1,862 mosques across India it wants reclaimed for Hindu worship.

Barring the details, all of these claims conform to this basic type: a Hindu temple was destroyed, and often a mosque was built in its place. Centuries ago: three and a half (Aurangzeb), seven (Alauddin Khilji), or 10, to take a few markers. Mahmud of Ghazni sacked the Somnath temple in 1025, almost one millennium ago—around the same time he ravaged cities in Iran too—but, as a pure horseback invader, he built nothing. The later ones, those who settled down and became kings, did—beginning from the first one, Qutubuddin Aibak. Their symbols and totems are now being refashioned as magnets for mass resentment in a feeding frenzy that is coalescing into a new 'Mandir Wapsi' movement.

CHIPPING THE LEGAL EDIFICE

The underlying turf of contestation is historical, and its trigger social-psychological, but the present theatre of conflict is the court of law. The vital bridgehead suddenly at stake is a 1991 legislation: the Places of Worship (Special Provisions) Act. The Supreme Court's final Ayodhya judgment—delivered unanimously by a five-judge bench on November 9, 2019—had embedded the Act in what seemed like a foolproof aura of constitutionality. It "speaks to our history and to the future of the nation", the court said, continuing in resonant words: "History and its wrongs shall not be used as instruments to oppress the present and the future." It cements "secularism", a kernel feature of our Constitution that's protected by the principle of "non-retrogression". And it "imposes a non-derogable obligation" on the State to uphold that secularism. That should have been that—the court's words had a ring of finality. But now, the Act is appearing a touch vulnerable, and the challenge to it is coming from many fronts. Lawyer and BJP member Ashwini Upadhyay (acting in his individual capacity) has mounted a direct attack on the Act with a plea before the Supreme Court, saying it violates the fundamental right to religion—the plea is likely to come up for listing in July. "The cut-off date of August 15, 1947, legalises the illegal acts of barbaric invaders," he tells INDIA TODAY. And the petitioners are trying to use the law's own clauses to gnaw away at its core.

The Places of Worship Act—enacted during the height of the Ayodhya movement to defuse communal tensions and exempting that site since it was sub judice from pre-Independence days—is crystal clear in its wording, objectives and stipulations. Its critical clause, Section 3, says no place of worship of any religious denomination should be "converted" to that of another, not even to another sect. Section 4(1) mandates that



CHANDRADEEP KUMAR

MATHURA

SHAHI IDGAH



SNIFFING A PLOT

THE CONTROVERSY

It concerns the removal of the Shahi Idgah mosque, which stands on 2.5 acres of the 13.37 acres of land said to belong to the Shri Krishna Janmasthan Sewa Sansthan (KJSS). The mosque is said to have come up on the plinth of the Keshavadeva temple that emperor Aurangzeb razed in 1670 in retribution for a Jat rebellion. Jugal Kishore Birla bought the land for Rs 13,400 in 1944 and set up the Shri Krishna Janmabhoomi Trust, which later became the KJSS.